

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

CR 19 00099

EJD

NC

SAN JOSE DIVISION

THE UNITED STATES OF AMERICA

VS

KISHORE DATTAPURAM, et al

FILED

FEB 28 2019

SEALED BY ORDER
OF COURT

SUSAN Y. SOONG
CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
SAN JOSE

INDICTMENT

COUNT 1: 18 U.S.C. § 371 – Conspiracy to Commit Visa Fraud

COUNTS 2-11: 18 U.S.C. § 1546(a) – Visa Fraud

A true bill.



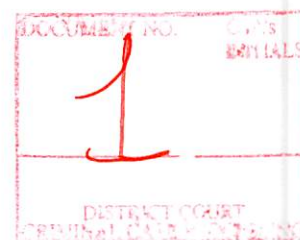
Foreperson

Filed in open court this 28 day of February A.D. 2019



United States Magistrate Judge
Nathanac / Cousiny

Bail. \$ no bail arrest warrants as to all 3 defendants?



SEALED BY ORDER
OF COURT

E-filing

DAVID L. ANDERSON (CABN 149604)
United States Attorney

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CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
SAN JOSE

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

SAN JOSE DIVISION

UNITED STATES OF AMERICA,

CR 19 NO. 00099 EJD NC

Plaintiff,

v.

KISHORE DATTAPURAM,
KUMAR ASWAPATHI, and
SANTOSH GIRI,

Defendants.

VIOLATIONS:

18 U.S.C. § 371 – Conspiracy to Commit Visa
Fraud; 18 U.S.C. § 1546(a) – Visa Fraud; 18 U.S.C.
§ 2 – Aiding and Abetting; 18 U.S.C.
§ 982(a)(6)(A)(ii) – Visa Fraud Forfeiture

SAN JOSE VENUE

INDICTMENT

The Grand Jury charges:

INTRODUCTORY ALLEGATIONS

Relevant Individuals and Entities

At all times relevant to this Indictment:

1. Defendant Kishore DATTAPURAM was the President, Chief Executive Officer, and person with ultimate authority over the activities and operations of Nanosemantics, Inc.

2. Defendant Kumar ASWAPATHI was the Secretary and Chief Financial Officer of Nanosemantics, Inc.

3. Defendant Santosh GIRI was affiliated with Nanosemantics, Inc. as a partner, employee,

1 independent contractor, or other associate, and communicated on behalf of the company using the email
2 address "immigration@nanosemantics.com."

3 4. Nanosemantics, Inc., incorporated in the State of California on or about October 31,
4 2005, was a consulting firm in Santa Clara, California, offering services including the placement of
5 skilled foreign workers at software and technology companies. The company was owned and operated
6 by Kishore DATTAPURAM and Kumar ASWAPATHI.

7 The H-1B Visa Program

8 5. The Immigration and Nationality Act, 8 U.S.C. § 1101, controls and regulates several
9 categories of foreign nationals who may be admitted to the United States on a temporary basis as
10 nonimmigrants.

11 6. The H-1B Specialty Occupation Workers program allows an employer to temporarily
12 employ a foreign worker in the United States on a nonimmigrant basis in a "specialty occupation." A
13 specialty occupation requires the theoretical and practical application of a body of specialized
14 knowledge and a bachelor's degree or its equivalent in the relevant specialty. The Employment and
15 Training Administration ("ETA") is an agency of the United States established within the United States
16 Department of Labor ("DOL") and empowered to administer parts of the H-1B program.

17 7. Each employer seeking to employ an H-1B nonimmigrant is required to submit a
18 completed Labor Condition Application, ETA Form 9035 ("LCA"). The LCA requires the employer to
19 make several attestations, providing confirmation of the existence and duration of the temporary job
20 posting and describing the wages, working conditions, and benefits for the position.

21 8. Following submission of the LCA and subsequent DOL certification, the sponsor of the
22 foreign worker seeking temporary employment under the H-1B program is required to file a Form I-129
23 Petition for Nonimmigrant Worker ("I-129 Petition") with the United States Citizenship and
24 Immigration Services ("USCIS"), a component of the United States Department of Homeland Security
25 ("DHS"), for the individual foreign worker hired in connection with the certification. The foreign
26 worker is referred to as the "beneficiary" of the H-1B visa application process. When a petitioner other
27 than the ultimate employer applies for an H-1B visa for a foreign worker, the ultimate employer seeking
28 to hire the worker is referred to as the "end-client."

Submission of Fraudulent H-1B Visa Applications by Nanosemantics, Inc.

9. Since at least 2012, Nanosemantics, Inc. has held itself out as a consulting firm offering staffing services to technology companies located in the Northern District of California. In connection with those services, Nanosemantics regularly applied for H-1B visas on behalf of foreign workers. Nanosemantics could then place these H-1B visa recipients as temporary workers at end-client companies.

10. As President and CEO of Nanosemantics, Kishore DATTAPURAM had ultimate authority over the activities and operations of Nanosemantics. Kumar ASWAPATHI served as Secretary and CFO, and actively participated in various aspects of the company's business, including the submission of H-1B visa applications. Santosh GIRI assisted with Nanosemantics' business operations in several ways, including advising DATTAPURAM and ASWAPATHI on end-client selection and interfacing with the USCIS in connection with pending H-1B visa applications.

11. Beginning no later than May 2012 and continuing through at least 2015, in the Northern District of California and elsewhere, Defendants devised, agreed upon, and executed a scheme to commit visa fraud by submitting, and causing to be submitted, fraudulent H-1B applications representing that the beneficiaries had specific jobs waiting for them at designated end-client companies. In reality, Defendants knew that the listed jobs did not exist. Rather than securing employment for beneficiaries before seeking H-1B visas as the law requires, Defendants paid employers to serve as purported end-clients for foreign workers, never intending to place the beneficiaries at those end-client companies.

12. As a result of this scheme, Defendants and Nanosemantics gained an unfair advantage over competing staffing firms, in that Nanosemantics was able to obtain H-1B visas for job candidates while continuing to market them to potential end-clients, placing candidates at those end-clients as soon as employment was secured. In contrast, staffing firms complying with the law were required to secure employment for workers by first completing the H-1B visa application process prior to placing those workers at end-client companies.

//

1 COUNT ONE: (18 U.S.C. § 371 – Conspiracy to Commit Visa Fraud)

2 13. The factual allegations contained in paragraphs 1 through 12 of this Indictment are
3 hereby re-alleged and incorporated by reference as if set forth in full herein.

4 14. Beginning on a date unknown, but no later than approximately May 2012, and continuing
5 at least through December 2015, in the Northern District of California and elsewhere, the defendants,

6 KISHORE DATTAPURAM,
7 KUMAR ASWAPATHI, and
8 SANTOSH GIRI,

9 did knowingly and intentionally conspire to commit crimes against the United States, namely, to
10 knowingly make under oath, and subscribe as true under penalty of perjury under 28 U.S.C. § 1746,
11 false statements with respect to material facts in an application, an affidavit, and a document required by
12 the immigration laws and regulations prescribed thereunder, in violation of Title 18, United States Code,
13 Section 1546(a).

14 15. In furtherance of the conspiracy and to effect the objects thereof, the following overt acts
15 were committed in the Northern District of California and elsewhere:

16 a) On or about April 1, 2014, Nanosemantics, Inc. submitted an I-129 Petition for
17 beneficiary “RK,” bearing ASWAPATHI’s signature, falsely stating that the beneficiary would
18 be employed at Awaaz Productions;

19 b) On or about April 1, 2014, Nanosemantics, Inc. submitted an I-129 Petition for
20 beneficiary “TK,” bearing ASWAPATHI’s signature, falsely stating that the beneficiary would
21 be employed at Awaaz Productions;

22 c) On or about April 1, 2014, Nanosemantics, Inc. submitted an I-129 Petition for
23 beneficiary “SP,” bearing ASWAPATHI’s signature, falsely stating that the beneficiary would
24 be employed at Awaaz Productions;

25 d) On or about April 1, 2014, Nanosemantics, Inc. submitted an I-129 Petition for
26 beneficiary “RB,” bearing ASWAPATHI’s signature, falsely stating that the beneficiary would
27 be employed at Awaaz Productions;

28 e) On or about April 1, 2014, Nanosemantics, Inc. submitted an I-129 Petition for
beneficiary “SC,” bearing ASWAPATHI’s signature, falsely stating that the beneficiary would

1 be employed at Autosense;

2 f) On or about April 1, 2014, Nanosemantics, Inc. submitted an I-129 Petition for
3 beneficiary "VS," bearing ASWAPATHI's signature, falsely stating that the beneficiary would
4 be employed at Autosense;

5 g) On or about April 1, 2015, Nanosemantics, Inc. submitted an I-129 Petition for
6 beneficiary "NM," bearing ASWAPATHI's signature, falsely stating that the beneficiary would
7 be employed at Awaaz Productions;

8 h) On or about April 1, 2015, Nanosemantics, Inc. submitted an I-129 Petition for
9 beneficiary "VC," bearing ASWAPATHI's signature, falsely stating that the beneficiary would
10 be employed at Awaaz Productions;

11 i) On or about April 1, 2015, Nanosemantics, Inc. submitted an I-129 Petition for
12 beneficiary "AK," bearing ASWAPATHI's signature, falsely stating that the beneficiary would
13 be employed at Awaaz Productions;

14 j) On or about April 6, 2015, Nanosemantics, Inc. submitted an I-129 Petition for
15 beneficiary "SN," bearing ASWAPATHI's signature, falsely stating that the beneficiary would
16 be employed at Awaaz Productions;

17 k) On or about March 24, 2014, DATTAPURAM visited the offices of Awaaz
18 Productions to confirm that the location was large enough to serve as a plausible employment
19 location for five to ten H-1B workers;

20 l) On or about August 6, 2014, DATTAPURAM, ASWAPATHI, and GIRI
21 corresponded by email regarding an inquiry made by USCIS regarding Awaaz Productions. In
22 that correspondence, Defendants discussed sending Awaaz a list of candidates selected for the
23 company so that Awaaz could pass along that false information to USCIS;

24 m) On or about August 21, 2014, DATTAPURAM directed beneficiary "TK" to
25 prepare documents purporting to describe her work at Awaaz Productions, although "TK" was
26 never employed at Awaaz Productions;

27 n) On or about October 8, 2015, DATTAPURAM caused a check to be issued from
28 Nanosemantics, Inc. to the CEO of Awaaz Productions in the amount of \$1,133.00 as payment

for allowing Nanosemantics to list Awaaz Productions as an end-client in connection with I-129 Petitions, although Nanosemantics never placed any employees at Awaaz Productions;

o) On April 19, 2016, DATTAPURAM caused a check to be issued from Nanosemantics, Inc. to the CEO of Awaaz Productions in the amount of \$336.00 as payment for allowing Nanosemantics to list Awaaz Productions as an end-client in connection with I-129 Petitions, although Nanosemantics never placed any employees at Awaaz Productions; All in violation of Title 18, United States Code, Section 371.

COUNTS TWO THROUGH ELEVEN: (18 U.S.C. § 1546(a) – Visa Fraud;
18 U.S.C. § 2 – Aiding and Abetting)

16. The factual allegations contained in paragraphs 1 through 15 of this Indictment are hereby re-alleged and incorporated by reference as if set forth in full herein.

17. On or about the dates listed below, in the Northern District of California and elsewhere, the defendants,

KISHORE DATTAPURAM,
KUMAR ASWAPATHI, and
SANTOSH GIRI,

aided and abetted by each other, knowingly made under oath, and subscribed as true under penalty of perjury under 28 U.S.C. § 1746, false statements with respect to material facts in an application, an affidavit, and a document required by the immigration laws and regulations prescribed thereunder, namely, in the I-129 Petitions and supporting documentation for H-1B nonimmigrant worker applicants, by falsely representing that the below-listed applicants had job offers and statement-of-work documents from disclosed end-client companies, when Defendants knew at the time that these representations were false:

Count	Date of Submission	Name of Beneficiary
2	April 1, 2014	“RK”
3	April 1, 2014	“TK”
4	April 1, 2014	“SP”
5	April 1, 2014	“RB”

6	April 1, 2015	"NM"
7	April 1, 2015	"VC"
8	April 1, 2015	"AK"
9	April 6, 2015	"SN"
10	April 1, 2014	"SC"
11	April 1, 2014	"VS"

All in violation of Title 18, United States Code, Section 1546(a).

FORFEITURE ALLEGATION: (18 U.S.C. § 982(a)(6)(A)(ii) and 28 U.S.C. § 2461(c) – Criminal Forfeiture)

18. The factual allegations contained in paragraphs 1 through 17 of this Indictment are hereby re-alleged and incorporated by reference as if set forth in full herein.

19. Upon conviction for Counts 1 through 11 of this Indictment, alleging violations of 18 U.S.C. § 371 and 18 U.S.C. § 1546(a), the defendants,

KISHORE DATTAPURAM,
KUMAR ASWAPATHI, and
SANTOSH GIRI,

shall forfeit to the United States, pursuant to 18 U.S.C. § 982(a)(6)(A)(ii), any property, real or personal, (i) that constitutes or is derived from or is traceable to the proceeds obtained directly or indirectly from the commission of the offense of conviction; or (ii) that is used to facilitate, or is intended to be used to facilitate, the commission of the offense of conviction. The property includes, but is not limited to, the following: a sum of money equal to the total value of the proceeds obtained directly or indirectly from the commission of the offense of conviction.

20. If any of the property described above, as a result of any act or omission of the defendants:

- a) cannot be located upon the exercise of due diligence;
- b) has been transferred or sold to, or deposited with, a third party;
- c) has been placed beyond the jurisdiction of the court;
- d) has been substantially diminished in value; or

e) has been commingled with other property which cannot be divided without difficulty;

the United States of America shall be entitled to forfeiture of substitute property pursuant to Title 21, United States Code, Section 853(p), as incorporated by Title 18, United States Code, Section 982(b)(1)

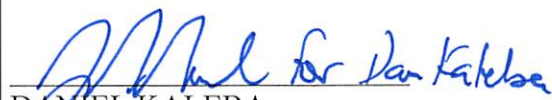
All pursuant to Title 18, United States Code, Section 982(a)(6)(A)(ii) and Title 28, United States Code, Section 2461(c).

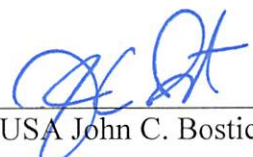
DATED: 2-28-19

A TRUE BILL


FOREPERSON

DAVID L. ANDERSON
United States Attorney


DANIEL KALEBA
Deputy Chief, Criminal Division

(Approved as to form: )
AUSA John C. Bostic

DEFENDANT INFORMATION RELATIVE TO A CRIMINAL ACTION - IN U.S. DISTRICT COURT

BY: ☐ COMPLAINT ☐ INFORMATION ☒ INDICTMENT ☐ SUPERSEDING

Name of District Court, and/or Judge/Magistrate Location

NORTHERN DISTRICT OF CALIFORNIA

SAN JOSE DIVISION

OFFENSE CHARGED

COUNT 1: 18 U.S.C. 371 - Conspiracy to Commit Visa Fraud
COUNTS 2 through 11: 18 U.S.C. 1546(a) - Visa Fraud

- ☐ Petty
☐ Minor
☐ Misdemeanor
☒ Felony

PENALTY: COUNT 1: 5 yrs max prison term; \$250,000 max fine; 3 yrs supervised release; \$100 special assessment per count
COUNTS 2-11: 10 yrs max prison term; \$250,000 max fine; 3 yrs supervised release; \$100 special assessment per count
+ potential immigration consequences for non-citizens

DEFENDANT - U.S.

KISHORE DATTAPURAM

DISTRICT COURT NUMBER

00099

EJD NC

DEFENDANT

PROCEEDING

Name of Complainant Agency, or Person (& Title, if any)

Homeland Security Investigations

☐ person is awaiting trial in another Federal or State Court, give name of court

☐ this person/proceeding is transferred from another district per (circle one) FRCrP 20, 21, or 40. Show District

☐ this is a reprosecution of charges previously dismissed which were dismissed on motion of:

☐ U.S. ATTORNEY ☐ DEFENSE

SHOW DOCKET NO.

☐ this prosecution relates to a pending case involving this same defendant

MAGISTRATE CASE NO.

☐ prior proceedings or appearance(s) before U.S. Magistrate regarding this defendant were recorded under

IS NOT IN CUSTODY

Has not been arrested, pending outcome this proceeding.

1) ☒ Not detained give date any prior summons was served on above charges

2) ☐ Is a Fugitive

3) ☐ Is on Bail or Release from (show District)

IS IN CUSTODY

4) ☐ On this charge

5) ☐ On another conviction

☐ Federal ☐ State

6) ☐ Awaiting trial on other charges

If answer to (6) is "Yes", show name of institution

Has detainer been filed? ☐ Yes ☐ No

If "Yes" give date filed

DATE OF ARREST

Month/Day/Year

Or... if Arresting Agency & Warrant were not

DATE TRANSFERRED TO U.S. CUSTODY

Month/Day/Year

Name and Office of Person

Furnishing Information on this form David L. Anderson

☒ U.S. Attorney ☐ Other U.S. Agency

Name of Assistant U.S. Attorney (if assigned)

John C. Bostic

☐ This report amends AO 257 previously submitted

ADDITIONAL INFORMATION OR COMMENTS

PROCESS:

☐ SUMMONS ☐ NO PROCESS* ☒ WARRANT

Bail Amount: No bail

If Summons, complete following:

☐ Arraignment ☐ Initial Appearance

Defendant Address:

* Where defendant previously apprehended on complaint, no new summons or warrant needed, since Magistrate has scheduled arraignment

Date/Time:

Before Judge:

Comments:

Δ1

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DEFENDANT - U.S.

KUMAR ASWAPATHI

DISTRICT COURT NUMBER

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SAN JOSE DIVISION

DEFENDANT - U.S.

SANTOSH GIRI

DISTRICT COURT NUMBER

NC

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